

M/S Pal News Media Pvt. Ltd. And Another v. State of U.P. And 4 Others

Allahabad High Court · Division Bench · 23 January 2018 · Writ - C No. - 2592 of 2018 · **Writ petition disposed of at admission; licensee to consider the fresh-connection application in accordance with law and process it expeditiously in light of Seema Mansoor within 10 days of certified copy; later review/recall dismissed for want of prosecution**

HEADNOTE

Where a lessee's application for a fresh electricity connection is not sanctioned solely for want of the landlord's consent, after the landlord procured permanent disconnection of the existing supply during a pending eviction suit, the writ court will not itself grant the connection. Following *Seema Mansoor v. U.P. Power Corporation Ltd.*, Clause 4.4 of the U.P. Electricity Supply Code, 2005 provides either the owner's consent or, in its absence, an indemnity bond by the occupier; a licensee cannot refuse supply to a tenant, lessee or occupier merely for want of the landlord's consent. Recording the licensee's statement that the fresh-connection application would be processed expeditiously in that light, the Court directed the licensee to consider the application in accordance with law and process it expeditiously in light of *Seema Mansoor* within ten days of production of a certified copy. A later review/recall application was dismissed for want of prosecution.

FACTUAL SUMMARY

M/S Pal News Media Pvt. Ltd. and another took a lease of premise No. B-175, Sector-44, Noida, District Gautam Budh Nagar, from the fifth respondent on 19 January 2017. The landlord then filed a suit for eviction, still pending before the Civil Judge (Senior Division), Gautam Budh Nagar, and applied to the distribution licensee (respondents 3 and 4) for permanent disconnection. The connection was permanently disconnected on 26 December 2017.

The petitioners applied on 2 January 2018 to transfer the connection into their name and were told it could not be transferred without the landlord's consent. They applied again on 9 January 2018 for a fresh connection at the same premises. Their grievance was that even that application was not being sanctioned for want of the landlord's consent. With the parties' consent the writ was finally disposed of at admission without a counter-affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

lessee/occupier cannot be refused a fresh connection solely for want of the landlord's consent; application to be considered in light of *Seema Mansoor*

QUESTION

May a licensee refuse a lessee's application for a fresh electricity connection solely because the landlord, who procured disconnection amid a pending eviction, withholds consent?

HOLDING

Following *Seema Mansoor*, no. Clause 4.4 of the Code, as construed in that decision, provides either a consent letter of the owner or, in its absence, an indemnity bond by the lessee, tenant or occupier. Every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Code; an application cannot be refused merely for want of the landlord's consent. The Court did not itself grant the connection. Recording counsel's statement that the petitioners' fresh-connection application would be processed expeditiously in light of *Seema Mansoor*, it directed respondents 2, 3 and 4 to consider that application in accordance with law and process it expeditiously in light of *Seema Mansoor* within ten days of production of a certified copy. ¶ 5-7

QUALIFIER

The operative direction is confined to the 9.1.2018 fresh-connection application. Transfer of the disconnected connection, the pending eviction, and occupancy on the merits were not decided.

FLAG Source PDF concatenates the 23.1.2018 disposal with Review/Recall Application No. 2 of 2018, dismissed for want of prosecution on 18.5.2018 (same coram; none appeared for the review applicant). The 23.1.2018 order is unnumbered; paras 1-7 are sequential blocks from 'We have heard' (the extracted Seema Mansoor paras 15, 16 and 19 are treated as part of para 5). The Court referred to 'U.P. Electricity Code, 2005'; keyed to the Supply Code, 2005 Clause 4.4 as named. Act ss. 42/43 are from the adopted Seema Mansoor extract, not independently applied. Date and coram are of the 23.1.2018 disposal.

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond The Court adopted Seema Mansoor's reading of Clause 4.4: the Code provides either the owner's consent or an occupier's indemnity bond, so a lessee/tenant cannot be refused supply merely for want of the landlord's consent. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* ¶ 5

occupier-entitled-to-connection-on-indemnity-bond-annexure-4.2 The adopted Seema Mansoor extract treats Annexure 4.2 as the occupier's indemnity path where the owner's consent is not obtained, and holds that a proper application with that indemnity cannot be refused solely for want of landlord consent. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* ¶ 5

owner-consent-not-a-bar-to-supply The petitioners were told even a fresh connection would not be sanctioned without the landlord's consent. Following Seema Mansoor, that is not a lawful ground of refusal. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* ¶ 4-5

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The Court did not mandamus grant of supply. Recording the licensee's statement, it directed consideration of the fresh-connection application in accordance with law and expeditious processing in light of Seema Mansoor within ten days. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GRANT OF THE FRESH ELECTRICITY CONNECTION

Left to the licensee to consider in accordance with law and process expeditiously in light of Seema Mansoor; no mandamus to connect. ¶ 6-7

NOT DECIDED — TRANSFER OF THE DISCONNECTED CONNECTION INTO THE PETITIONERS' NAME

The 2.1.2018 transfer request was recorded as refused for want of landlord consent; the operative direction is only on the 9.1.2018 fresh-connection application. ¶ 3, 7

NOT DECIDED — PENDING EVICTION SUIT AND DISPUTED OCCUPANCY AS AGAINST THE LANDLORD

The eviction remains pending before the Civil Judge (Senior Division), Gautam Budh Nagar; no finding on title or the right to remain in occupation. ¶ 3

NOT DECIDED — MERITS OF REVIEW/RECALL APPLICATION NO. 2 OF 2018

Dismissed for want of prosecution on 18.5.2018; none appeared for the review applicant. ¶ [review order of 18.5.2018](#)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd., Lucknow and others</i> 2014(6) ADJ 672 Allahabad High Court	Clause 4.4 of the Supply Code provides either the owner's consent or an occupier's indemnity bond (Annexure 4.2); every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Code, and the licensee cannot refuse a connection solely for want of the landlord's consent.		Court	Followed

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.